

4.	Gallagher vs. Razavi 25-01522835	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Production Plaintiff Janell Gallagher’s motion to compel further responses to her first sets of requests for production, form interrogatories, and special interrogatories is GRANTED IN PART and DENIED IN PART, as follows. (See Code Civ. Proc., §§ 2030.300, 2031.310.) Defendant Dr. Mahmood Razavi is ORDERED to provide verified further responses without objections to the following discovery requests, which shall include the simultaneous production of any and all responsive documents, within 45 days of notice: (1) Plaintiff’s first set of requests for production, Nos. 6, 9, and 24; (2) Plaintiff’s first set of form interrogatories, Nos. 2.3, 2.11-2.13, 4.1, 4.2, 12.1-12.7, 13.1, 14.2, 16.1-16.6, 16.9, and 16.10; and (3) Plaintiff’s first set of special interrogatories, Nos. 2, 5, 23, and 25. Sanctions are GRANTED in the total amount of \$5,050 in favor of plaintiff and against defendant, payable within 45 days. (See Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h).) The motion is otherwise DENIED. <u>RFPs at issue.</u> The requests for production (RFP) at issue are Nos. 1, 2, 4, 6-10, 13, 15, 17-19, 22-24, and 28. <u>RFP Nos. 6, 9, 24.</u> Defendant’s responses to RFP Nos. 6, 9, and 24 are deficient and incomplete. Defendant admits his response to RFP No. 6 does not include certain responsive documents including, inter alia, a demand letter from plaintiff that he acknowledges exists. (See Opp. Sep. Stmt. at p. 9.) “[A] party has a general duty to conduct a reasonable investigation to obtain responsive information ... and must furnish information from all sources under his or her control.” (<i>Regency Health Services, Inc. v. Superior Court</i> (1998) 64 Cal.App.4th 1496, 1504.) Defendant’s response to RFP No. 9 fails to comply with Code of Civil Procedure section 2031.230; it does not state whether the requested documents “[have] never existed, [have] been destroyed, [have] been lost, misplaced, or stolen, or [have] never been, or is no longer, in the possession, custody, or control of the responding party,” and further
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fails to “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (*Ibid.*)

Defendant’s response to RFP No. 24 is woefully insufficient. RFP No. 24 seeks all documents “from [defendant’s] personal devices (including but not limited to cell phones, tablets, and computers) relating to [plaintiff] or the February 17, 2024, incident.” Defendant responded to this request by effectively objecting on the ground of ambiguity, stating he “does not understand what documents are being sought.” (Opp. Sep. Stmt. at p. 25.)

The objection fails as there is nothing confusing about this request. (See *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 [a request must be answered if the nature of the information sought is apparent].)

Furthermore, defendant has waived any such objection by failing to serve timely responses to the subject discovery requests, including the subject RFPs. Plaintiff properly served the discovery requests on defendant himself (rather than on his current counsel) on 12/10/25, as defendant had not yet appeared in this action and did not yet have an attorney of record at that time. Plaintiff was not required to serve defendant through his attorney until he appeared in this action through counsel, which was not until he filed his answer to complaint on 12/29/25. (See Code Civ. Proc., § 1015; Cal. Rules of Court, rule 1.21(a) [service upon a represented party must be to the party’s attorney]; see also *id.*, rule 1.6(15) [“party” means a “a person appearing in an action”].) Responses were originally due within 30 days of 12/10/25, as extended by the manner of service. (See Code Civ. Proc., §§ 2030.260, subd. (a) [responses due 30 days after service of interrogatories], 2031.260, subd. (a) [same for requests for production]; see also *id.*, §§ 2013, 2016.050 [section 1013 applies to any method of discovery].) The proofs of service of the subject discovery requests indicate they were served via “Federal Express,” without any indication as to whether plaintiff used a method providing for overnight or next-day delivery. (See Spiegel Decl. at Exs. 2-4 [attached proofs of service].) As such, the time to provide responses was extended by the default rule of five days, placing the initial due date on Wednesday 1/14/26. (See *id.*, § 1013, subd. (a) [mail service extends the time to act by five days, and “[t]his extension applies in the absence of a specific exception provided for by this section or other statute or rule of court”].) The parties later agreed to a “14-day discovery extension in which to provide verified responses to Plaintiff’s discovery, sets 1” (Spiegel Decl. at Ex. 6 [1/9/26 emails]), ultimately making defendant’s responses to the subject discovery due by no later than Wednesday 1/28/26. Defendant did not serve his

responses until 1/30/26, rendering them untimely. (See Spiegel Decl. ¶¶ 6-7, Ex. 7.) Defendant has therefore waived all objections, including those based on privilege or work product, by failing to timely respond. (Code Civ. Proc., §§ 2030.290, subd. (a) [interrogatories], 2031.300, subd. (a) [requests for production].)

As for the parties' agreement to a third-party forensic examination of defendant's cellphone for responsive documents, the court commends counsel for reaching an immensely reasonable, mutually agreeable solution. As it currently stands, however, defendant's response to RFP No. 24 does not state defendant will comply with the demand in this manner and makes no mention of the forensic examination or agreement. Further, RFP No. 24 seeks responsive documents from all of defendant's "personal devices," "including but not limited to cell phones, *tablets, and computers....*" The parties' agreement only covers defendant's cellphone; there is no response as to any responsive documents from defendant's other personal devices (or the cloud). Therefore, the forensic examination of defendant's cellphone does not address the entirety of this demand.

To be clear, the Court is not ruling that defendant must submit to a forensic inspection of his tablets, computers, or other similar "personal devices" at this time. Plaintiff has not in fact demanded such an inspection. What RFP No. 24 seeks is "documents" as defined in the subject request, not an "inspection" of any tangible thing. Although defendant has voluntarily agreed to allow a forensic examination of his cellphone for documents responsive to this request (see Spiegel Reply Decl. ¶ 3, Ex. A), this does not mean he has agreed to the same with respect to any other device. A request to inspect devices may theoretically be appropriate in this case, but plaintiff has not yet propounded such a request.

RFP Nos. 1, 2, 19. Defendant's responses to RFP Nos. 1, 2, 19, are complete and Code-compliant. (See Code Civ. Proc., §§ 2031.220, 2031.230.) The court cannot compel production of documents that defendant swears under penalty of perjury do not exist. (See *Holguin v. Superior Court* (1972) 22 Cal.App.3d 812, 820.)

All remaining RFPs at issue. Plaintiff has failed to show good cause for the discovery sought by RFP Nos. 4, 7-8, 10, 13, 15, 17, 18, 22-23, and 28. (See Code Civ. Proc., § 2031.310, subd. (b)(1) [good cause requirement]; *Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117 [good cause]; *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224 [motion must be supported by factual evidence by way of declarations setting forth

		specific facts justifying each category of materials sought to be produced]; see also Spiegel Decl., in passim.) <u>Form interrogatories.</u> Contrary to defendant’s contentions, defendant’s responses to the subject form interrogatories at issue effectively are objections on the grounds that they assume facts not in evidence, namely, “that [the] ‘INCIDENT’ took place.” (See Pl. Sep. Stmt., pp. 19-49; see also Spiegel Decl. at Ex. 11 [responses to form interrogatories].) As discussed above, defendant has waived any such objection by failing to serve timely responses, and there is no objection to an interrogatory on the ground that it assumes facts in any event. (See <i>West Pico Furniture Co. of Los Angeles v. Superior Court</i> (1961) 56 Cal.2d 407, 421; see Code Civ. Proc., § 2030.010.) Moreover, the objection would lack merit because the form interrogatories specifically define the term “INCIDENT” to mean “the circumstances and events surrounding the alleged accident, injury, or other occurrence ... giving rise to this action or proceeding.” (Spiegel Decl. at Ex. 4 [form interrogatories § 4(a)(1)].) Some of defendant’s responses to the subject form interrogatories also fail to answer the call of the question (for example, defendant’s responses to Form Interrogatory Nos. 2.11, 12.1-12.6, among others). (See <i>Deyo, supra</i>, 84 Cal.App.3d at p. 783 [“deftly worded conclusionary answers designed to evade a series of explicit questions” are improper].) <u>Special interrogatories.</u> Defendant’s responses to the subject special interrogatories are not complete and to this Court, fail to fully answer the call of these questions. (See <i>Regency Health Services, supra</i>, 64 Cal.App.4th at p. 1504 [duty to conduct a reasonable investigation to obtain responsive information and furnish information from all sources under his or her control]; <i>Deyo, supra</i>, 84 Cal.App.3d at p. 783.) Plaintiff shall give notice.
5.	Kennedy vs. Emanuel 22-01248389	Motion to Seal Plaintiffs Drake Kennedy and Stephanie Kennedy’s Motion to Seal is DENIED. (Cal. Rules of Court, Rule 2.550.) In this situation, Plaintiffs have not made a sufficient factual showing of an overriding interest that supports sealing the records. (Cal Rules of Court, Rule 2.550, subd. (d).) It appears that Defendants have designated these records as confidential pursuant to the Parties’ stipulated protective order. (See ROA 199.) Defendants shall have 30 days from notice of this ruling to file a Motion to Seal that includes a declaration and admissible